

Tab 27



Los Angeles Unified School District

319

333 South Beaudry Ave,
Los Angeles, CA 90017

Board of Education Report

[Return to
Order of Business](#)

File #: ROC-003-23/24, **Version:** 1

Report of Correspondence (ROC-003-23/24)

BOARD OF EDUCATION OF THE CITY OF LOS ANGELES
Governing Board of the Los Angeles Unified School District

October 17, 2023

REPORT OF CORRESPONDENCE

The following correspondence addressed to the Board of Education is submitted with the recommended Disposition, “Refer to Superintendent for referral to Office of the General Counsel to take all steps necessary to protect the interests of the Board of Education, including assignment to outside counsel; Controller to draw warrants in such amounts as may be necessary for the payment of costs and fees upon invoices as approved by the Office of the General Counsel”:

FROM	LEGAL ACTION
1. Azimi Law Firm	Summons and Complaint for 1) Premise Liability 2) General Negligence; Case No. 22STCV10284; Superior Court of the State of California for the County of Los Angeles; Angelica Salgado, as GAL for Michael Morales, Plaintiff v. Los Angeles Unified School District; and Does 1 to 10, Defendants.
2. Bauman Law APLC	Summons & Complaint: 1. Premises Liability; Case No. 23STCV21818; Superior Court of California, County of Los Angeles; Chantrell Simmons, Plaintiff, v. Los Angeles Unified School District and Does 1 to 20, Defendant.
3. Bay Cities Law Group, Inc.	Complaint for Compensatory Treble and Punitive Damages; Case No. 23BBCV00009; Superior Court of the State of California for the County of Los Angeles; Charlie Rhyne, Plaintiff, v. Los Angeles Unified School District; and Does 1-100, Inclusive, Defendants.
4. Demarco Law Firm	Complaint for Damages: 1) Negligence; 2) Negligent Failure to Warn, Train, or Educate; Case No. 23STCV20613; Superior Court of California, for the County of Los Angeles; John M.E.L. Doe, Plaintiff v. Los Angeles Unified School District; and Does 2 to 100, Inclusive, Defendants.
5. Downtown L.A. Law Group	Summons and Complaint for Damages for: 1. Discrimination in Violation of Gov’t Code §§12940 et seq.; 2. Retaliation in Violation of Gov’t Code §§12940 et seq.; 3. Failure to Prevent Discrimination, Harassment and Retaliation in Violation of Gov’t Code §12940(k); 4. Failure to Provide Reasonable Accommodations in Violation of Gov’t Code §§12940 et seq.; 5. Failure to Engage in a Good Faith Interactive Process in Violation of Gov’t Code §§12940 et seq.; and Demand over \$25,00; Case No. 23STCV20056; Superior Court of the State of California for the County of Los Angeles; Gizella Czene, an individual, Plaintiff v. Los

Angeles Unified School District, a California public entity; and Does 1 through 20, inclusive, Defendants.

6. Downtown L.A. Law Group
Summons & Compliant for Damages: 1. Assault 2. Battery 3. Intentional Infliction of Emotional Distress 4. Negligence 5. Negligent Hiring, Supervision and Retention; Case No. 23STCV20255; Superior Court of California, County of Los Angeles; Mister Jordan, a minor, by and through his Guardian ad Litem Tova Houston, Plaintiff, v. Los Angeles Unified School District, a public entity; Los Angeles County Office of Education, a public entity; City of Los Angeles, a public entity; County of Los Angeles, a public entity; John Doe, an individual; and Does 1 to 50, inclusive, Defendants.
7. Downtown LA Law Group
Summons and Complaint; Case No. 23STCV06174; Superior Court of the State of California for the County of Los Angeles – Central District; Brianna Acosta, a minor, by and through her GAL Maria Acosta, Plaintiff, v. Los Angeles Unified School District, a public entity; California Department of Education, a public entity; City of Los Angeles, a public entity; County of Los Angeles, a public entity; Los Angeles Office of Education, a public entity; State of California, a public entity, Defendants.
8. Equality Law LLP
First Amended Petition to Compel Arbitration; Case No. 23STCP02963; Superior Court of the State of California for the County of Los Angeles; United Teacher Los Angeles, Petitioner, v. Los Angeles Unified School District, Respondent.
9. Greenberg Gross LLP
Jeff Anderson & Associates
Summons & Complaint for Damages for: 1) Negligence 2) Negligence Supervision and Retention 3) Sexual Battery 4) Sexual Harassment; Case No. 23NWCV02830; Superior Court of the State of California County of Los Angeles, Central District; Jane Doe 7096, an individual, Plaintiff, v. Los Angeles Unified School District, a public entity; Gerardo Herrera, and individual; and Does 3-20, inclusive, Defendants.
10. Herman Law
First Amended Complaint For Damages: 1) Negligence (DISTRICT) 2) Negligent Hiring, Retention and Supervision (DISTRICT) 3) Negligent Failure to Warn, Train, or Educate (DISTRICT) 4) Negligent Supervision of a Minor (DISTRICT) 5) Breach of Mandatory Duty (DISTRICT) 6) Negligence (DOES 2 through 25); Case No. 23STCV14354; Superior Court of the State of California in and for the County of Los Angeles; D.M., Plaintiff, v. Los Angeles Unified School District; and Does 2-25, Defendants.

11. Herman Law
Summons on First Amended Complaint & First Amended Complaint for Damages: 1. Negligence (School) 2. Negligence (Does 2 through 25) 3. Negligent Hiring, Retention, and Supervision (School) 4. Negligent Hiring, Retention, and Supervision (Does 2 through 25); Case No. 23STCV14584; In the Superior Court of the State of California in and for the County of Los Angeles; J.D., Plaintiff, v. Los Angeles Unified School District; and Does 2 through 25, inclusive, Defendants.
12. Herman Law
Summons on First Amended Complaint & First Amended Complaint for Damages: 1. Negligence (District) 2. Negligence (Does 2 through 25) 3. Negligent Hiring, Retention, and Supervision (District) 4. Negligent Hiring, Retention, and Supervision (Does 2 through 25); Case No. 23SMCV02795; Superior Court of the State of California County of Los Angeles; N.H., Plaintiff, v. Los Angeles Unified School District; and Does 2 through 25, inclusive, Defendants.
13. Javaherian & Ruszecki, PC
Summons & Plaintiff's Complaint for: 1. Negligence 2. Negligent Hiring, Training, Supervision, and Retention 3. Strict Liability – Cal. Civ. Code §§2100 et seq.; Case No. 23BBCV01733; Superior Court of the State of California, County of Los Angeles, North Central District – Unlimited; Phillip Anthony Ponce, an individual, Plaintiff, v. Catherine Luisa Pinto Salazar, an individual; and Los Angeles Unified School District; and Does 1 through 50, inclusive, Defendants.
14. Kabateck LLP
Summons & First Amended Complaint for Damages: 1. Battery; 2. Assault; 3. Negligence (Govt. Code §§815.2, 815.4 and 820); 4. Negligent Hiring, Supervision, and Retention (Govt. Code §§815.2, 815.4 and 820); 5. Breach of Mandatory Duty (Govt. Code §815.6); Case No. 23CHCV00665; Superior Court of the State of California, County of Los Angeles; Arif Marwan Halaby, by and through his Guardian Ad Litem Marwan Halaby, Plaintiff, v. Los Angeles Unified School District, George K. Porter Middle School, Cornelius Redick, and Does 1-50, inclusive, Defendants.
15. Koron & Podolsky, LLP
Summons and Complaint for Damages: 1) Retaliation (Labor Code Section 1102.5) 2) Blacklisting (Labor Code Sections 1050, 1053, & 1054); Case No. 23STCV19608; Superior Court for the State of California County of Los Angeles; Ashley Rodriguez, Plaintiff, v. Los Angeles Unified School District, a public school; Patricia Ferguson, an individual; and Does 1 through 100, inclusive, Defendants.

16. Law Office of John B. Richards
Summons & Compliant for: 1. General Negligence, 2-3. Intentional Tort; Case No. 23STCV22489; Superior Court of California, County of Los Angeles; Kevin Kuechel, Plaintiff, v. Dennis Wheeler, Sabryna Beckles, L.A. Unified School District and Does 1-30, Defendant.

17. Law Office of Sharona Eslamboly Hakim
Summons & Complaint: 1) General Negligence 2) Premise Liability; Case No. 23CHCV01268; Superior Court of California, County of Los Angeles; Nathan Ewing-Herrick, a minor by and through his guardian ad litem, Tanya Ewing, Plaintiff, v. Los Angeles Unified School District, Dyer Street Elementary School, and Does 1 to 25, inclusive, Defendant.

18. Law Office of Waterman & Harris
Summons and Complaint Damages: Amendment to Complaint Notice of Discharge of OSC RE: Failure to File Proof of Service; New Case Management Conference Date and Minute Order Dated August 7, 2023; Case No. 23SMCV01701; Superior Court of the State of California, for the County of Los Angeles – West District; Fethi Sahman, Plaintiff, v. Los Angeles Unified School District; and Does 1-25, Inclusive, Defendants.

19. Law Office of William L. Paulsen & Associates
Summons & Compliant for Damages: 1. Negligence and Dangerous Condition of Public Property (Government Code sections 820, 830, et seq); Case No. 23STCV09086; Superior Court of the State of California, County of Los Angeles. Stanley Mosk Courthouse; Yeyetzi Briceno, a minor, by and through her Guardian Ad Litem, Stephanie Bautista, Plaintiff, v. Los Angeles Unified School District, Arlington Heights Elementary School, and Does 1-100, Defendants.

20. Law Offices of David Mamann
Summons & Complaint: 1) General Negligence 2) Premise Liability; Case No. 23STCV17635; Superior Court of California, County of Los Angeles; Angelique Marquez, by and through her guardian ad litem, Valerie Marquez, Plaintiff, v. Los Angeles Unified School District, and Does 1 to 10, Defendant.

21. Law Offices of Fred Hanassab
Summons & Compliant for: 1. Intentional Tort – Sexual Abuse of a Minor; 2. Intentional Tort – Intentional Infliction of Emotional Distress; 3. Intentional Tort – Sexual Harassment; 4. General Negligence – Negligent Hiring, Supervision and Retention of an Unfit Employee; 5. General Negligence – Breach of Mandatory Duty; Failure to Report Suspected Child Abuse; 6. General Negligence – Negligent Failure to Warn, Train or Educate; 7. General Negligence – Negligent Supervision of a Minor; 8. General Negligence; Case No. 23BBCV02172; Superior Court of California, County of Los Angeles; Marilyn R. Cortes Zapien; Maria Zapien, Plaintiff, v. Los Angeles Unified School District;

City of Los Angeles; County of Los Angeles; State of California; Toluca Lake Elementary School; David Whaley; Jeffery Daniel and Does 1 to 50, inclusive, Defendants.

22. Law Offices of Gerald L. Marcus
Summons and Complaint Damages: Causes of Action: 1. Negligence 2. Negligent Hiring 3. Negligent Supervision 4. Negligent Retention 5. Battery 6. Assault 7. Negligent Infliction of Emotional Distress; Case No. 23STCV04227; Superior Court of the State of California, for the County of Los Angeles, Stanley Mosk – Civil Unlimited; Diego Espericueta, a minor by and through his parent and guardian ad litem, Yajahira Espericueta, Plaintiff, v. Griffin Ave. Elementary School, a public entity; Los Angeles Unified School District, a municipal corporation; John Doe, an individual; and Does 1-100, inclusive, Defendants.
23. Law Offices of Howard C. Kornberg
Summons and Complaint for Personal Injuries and Damages Case No. 23SMCV02998; Superior Court of the State of California for the County of Los Angeles; Ki In Shapiro, Plaintiff v. Jose Gomez; Los Angeles Unified School District; and Does 1 through 100, Inclusive, Defendants.
24. Law Offices of Robin E. Paey
Summons and Complaint for General Negligence; Case No. 22CHCV01290; Superior Court of the State of California, County of Los Angeles; David Jovel, a minor by his GAL, Ismaris Jovel, Plaintiff, v. Los Angeles Unified School District; and Does 1-10, Inclusive, Defendants.
25. Lederer & Nojima
Summons and Complaint for Damages: Amendment to Complaint 1) Negligence 2) Negligent Hiring, Retention, Supervision, and Training; Case No. 23BBCV01846; Superior Court of the State of California, for the County of Los Angeles; Emerson Mikasa, a minor individual, by and through his GAL, Meredith Cherry, Plaintiff, v. Los Angeles Unified School District; and Does 1-25, Inclusive, Defendants.
26. Manly Stewart Finaldi
The Senators (Ret.) Firm, LLP
Summons & Complaint for Damages: 1) Negligence, Negligent Supervision, Negligent Hiring and/or Retention, Negligent Failure to Warn Train or Educate; 2) Constructive Fraud (C.C.§1573); 3) Intentional Infliction of Emotional Distress; 4) Breach of Fiduciary Duty; 5) Sexual Harassment (C.C. §51.9); 6) Sexual Battery 7) Gender Violence 8) Failure to Report Suspected Child Abuse (Pen. Code §11166, et seq.); Case No. 23STCV21626; Superior Court of the State of California County of Los Angeles, Central District; Plaintiff Jane ES Doe, an individual, et al Los Angeles Unified School District, a California public entity; Robert Pimental, an individual, Irene Hinojosa, an individual, and Does 1 to 100, Defendants.

27. Mgdesyian Law Firm
Summons and Complaint for Damages: 1. Negligence 2. Negligent Supervision 3. Dangerous Condition of Public Property; Case No. 22STCV26274; Superior Court of California in and for the County of Los Angeles; John, A.M., Doe, a minor by and through his Guardian ad Litem, Grigor Margaryan, Plaintiffs v. Los Angeles Unified School District, County of Los Angeles, and Does 1 through 20, inclusive, Defendants.
28. Philip A. Bucknor, Jr., Attorney at Law
Summons & Complaint for: 1. Disability Discrimination (Gov. Code § 12940, et seq.); 2. Failure to Engage in the Interactive Process 3. Retaliation for Exercising Disability Rights [Cal. Gov. Code §12940, et seq.]; Case No. 23STCV13851; Superior Court of the State of California for the County of Los Angeles; Pearl Howell, Plaintiff, v. Los Angeles Unified School District; Board of Education of the Los Angeles Unified School District and Does 1-20, inclusive, Defendants.
29. Pilot Law, P.C.
Complaint for Damages: Violations of 38 U.S.C. §4301 et seq; Notice of a Lawsuit and Request to Waive Service of a Summons; Waiver of the Service of Summons; Case No. 2:23-cv-06006; United States District Court Central District of California; Marta Schultz, an individual, Plaintiff, v. Los Angeles Unified School District, a California public entity, Defendant.
30. Sepulveda Sanchez Law, PC
Summons & Complaint for: 1. Negligence 2. Premises Liability; Case No. 23STCV21505; Superior Court of the State of California for the County of Los Angeles; Michelle Angeles Lopez, an individual, Plaintiffs, v. Los Angeles Unified School District, and Does 1-20, inclusive, Defendants.
31. Slater Slater Schulman, LLP
Summons & Complaint for Personal Injuries and Damages from Childhood Sexual Abuse; Case No. 22STCV37256; Superior Court of the State of California for the County of Los Angeles; John Doe R.R., an individual, Plaintiff, v. (Doe 1) Los Angeles Unified School District, a public entity; (Doe 2) Ronald Moore, an individual; Doe 3, an individual; and Does 4 through 60, inclusive, Defendants.
32. The Legal Offices of David Grey
Complaint for Damages for Failure to Perform Mandatory Duties Owed to Student; Case No. 23CMCV00298; Superior Court of the State of California for the County of Los Angeles; Romance Jacquice Donielle Barkins, a Minor by and through his GAL, Gerolyn Collins, Plaintiff v. Los

Angeles Unified School District; and Does 1 to 100, Inclusive, Defendants.

33. The Legal Offices of David Grey

Summons and Complaint for Damages for Personal Injury: (1) Based on Violation of Mandatory Duty to Protect Students; (2) Based on Negligence; Case No.23CMCV01385 ; Superior Court of the State of California for the County of Los Angeles; Sarah Ruby Rodriguez, a minor, by and through her Guardian ad Litem, Angelica Rodriguez, Plaintiff v. Los Angeles Unified School District, a public entity; and Does 1 through 100, inclusive, Defendants.

34. Trygstad, Schwab & Trygstad

Summons & Complaint for Damages for: 1. Failure to Reasonably Accommodate in Violation of the California Fair Employment and Housing Act [Government Code §12940, et seq.] 2. Failure to Engage in the Interactive Process in Violation of the California Fair Employment and Housing Act [Government Code §12940, et seq.] 3. Retaliation for Reporting Harassment and Discrimination and for Engaging in Protected Activity in Violation of the California Fair Employment and Housing Act [Government Code §12940, et seq.] 4. Harassment in Violation of the California Fair Employment and Housing Act [Government Code §12940, et seq.] 5. Failure to Prevent Retaliation in Violation of the California Fair Employment and Housing Act [Government Code §12940, et seq.] 6. Retaliation in Violation of Labor Code §1102.5 7. Violation of “Reporting by School Employees of Improper Governmental Activities Act” [Education Code §§ 44110 et seq.]; Case No. 23STCV22098; Superior Court of the State of California for the County of Los Angeles – Central District; Victoria Badmus-Wellington, Plaintiff, v. Los Angeles Unified School District, and Does 1-20, Defendants.

35. Trygstad, Schwab & Trygstad

Complaint for Damages for: 1) Retaliation for Reporting Harassment and Discrimination and for Engaging in Protected Activity in Violation of the California Fair Employment and Housing Act [Government Code § 12940, ET SEQ.] 2) Harassment in Violation of the California Fair Employment and Housing Act [Government Code § 12940, ET SEQ.] 3) Failure to Prevent Retaliation in Violation of the California Fair Employment and Housing Act [Government Code §12940, ET SEQ.]; Case No. 23STCV22857; Superior Court of the State of California for the County of Los Angeles – Central District; Dr. Traci Calhoun, Plaintiff, v. Los Angeles Unified School District; Board of Education of the Los Angeles Unified School District and Does 1-20, Defendants.

36. Trygstad, Schwab & Trygstad

Summons & Compliant for Damages for: 1. Retaliation for Reporting Harassment and Discrimination and for Engaging in Protected Activity in Violation of the California Fair Employment and Housing Act [Government Code § 12940, et seq.] 2. Failure to Prevent Retaliation in Violation of the California Fair Employment and Housing Act [Government Code § 12940, et seq.] 3. Retaliation in Violation of Labor Code § 1102.5] 4. Violation of “Reporting by School Employees of Improper Governmental Activities Act” [Education Code §§ 44110 et seq.]; Case No. 23STCV23604; Superior Court of the State of California, for the County of Los Angeles – Central District; Julie Hall-Panameno, Plaintiff, v. Los Angeles Unified School District, and Does 1-10, Defendants.

37. V. James Desimone Law

Summons & Plaintiff’s Compliant for Damages: 1. Negligence 2. Negligent Hiring, Supervision, or Retention of Employee 3. Violation of Bane Civil Rights Act (Civ. Code, § 52.1) 4. Negligent Infliction of Emotional Distress-Special Relationship of School to Student 5. Intentional Inflection of Emotional Distress; Case No. 23STCV21317; Superior Court of California, County of Los Angeles; W.C., a minor, by and through his Guardian ad Litem Janet Doliveira, Plaintiff, v. Los Angeles Unified School District, Antoinette Cass, in her Individual and Official Capacity; and Does 1 through 50, inclusive, Defendants.

The recommended disposition of the following item is “Refer to Superintendent for referral to the Office of the Risk Management and Insurance Services”:

<u>No.</u>	<u>Received From</u>	<u>Type of Damage</u>	<u>Claimant</u>	<u>Date of Damage</u>
38.	Adam Loew	Damages	Adam Loew	7-2021-Present
39.	Vanessa Pineda	Damages	Alan Ruvalcaba	8-18-2023
40.	Daniel D. Geoulla B&D Law Group	Damages	Andro Rivera	4-17-2023
41.	Maria Del Carmen Corona	Damages	Angel Anguiano / Maria Del Carmen Corona	3-13-2023

42.	Bryanna Gamarro Estrada	Damages	Bryanna Gamarro Estrada	8-29-2023
43.	Nathan Kim on behalf of Luke Hyuk Kim /Mabee Law Group	Damages	Caroline Lee and Nathan Kim on behalf of minor Luke Hyuk Kim	9-7-2023 (2 Received)
44.	Jazmine Gomez, Downtown LA Law Group	Damages	Daniel Orozco	3-20-2023
45.	Pierce Kavcioglu, Espinosa & Cesar LLP	Damages	Fredrick Towers, Inc	8-11-2021
46.	Benjamin Angulo	Damages	Jhonatan Ramirez	3-7-2023
47.	Arash Homampour, The Homampour Law Firm	Damages	Joshua Mora	3-30-2023
48.	Gary Berkovich, Law Offices of Gary Berkovich	Damages	Juliet Mateas Santiago	3-29-2023
49.	Diana Maltz, Learning Rights Law Center	Damages	Larusa Rhee	Dec. 2022 – June 2023
50.	Laura Morales	Damages	Laura Morales	9-13-2023
51.	Ramin R. Younessi	Damages	Leilani D. Mcklem Virgen	3-6-2023 (2 received)
52.	Maria Mena	Damages	Maria Mena	9-18-2023
53.	Ramin R. Younessi	Damages	Nathan K. Mcklem	3-6-2023 (2 received)

54.	Oshea Orchid, Public Employment Legal, LLP	Damages	Reyna Ledesma and Salmeena Ledesma on behalf of Dean Ledesma	3-17-2023
55.	Kia S. Champion	Damages	Ryder Cobb	3-16-2023
56.	Sharona Eslamboly Hakim, Law Offices of Eslamboly Hakim	Damages	Scarlett Martinez	3-21-2023
57.	Omar M. Naime	Damages	Sophia Palma	4-13-2023
58.	Terri Milner	Damages	Taya Jones	3-27-2023
59.	Terri Milner	Damages	Terri Milner	3-27-2023
60.	Olivia Leach, Allstate	Vehicle Damages	Allstate a/s/o Christian Rivas	4-28-2023
61.	Shalonda H., Allstate Insurance	Vehicle Damages	Allstate ins co ASO Ana Tejada	6-23-2023
62.	Aneesa Barton	Vehicle Damages	Aneesa Barton	5-23-2023
63.	Angeles Tristani	Vehicle Damages	Angeles Tristani	8-31-2023
64.	Cheryl Samson Ramirez	Vehicle Damages	Cheryl Samson Ramirez	8-23-2023

65.	Clerkin, Sinclair & Mahfouz, LLP o/b/o USAA Casualty Insurance Company a/s/o Michael Stangel and Ethan Stangel / Joanna Rodriguez	Vehicle Damages	Clerkin, Sinclair & Mahfouz, LLP o/b/o USAA Casualty Insurance Company a/s/o Michael Stangel and Ethan Stangel	6-9-2023
66.	Dalila Valladares	Vehicle Damages	Dalila Valladares	5-25-2023
67.	Debra Oguine	Vehicle Damages	Debra Oguine	9-14-2023
68.	Ho (Chris) Rhee	Vehicle Damages	Ho (Chris) Rhee	9-5-2023
69.	Dawn Botwinick, Interinsurance Exchange of the Automobile Club	Vehicle Damages	Interinsurance Exchange of the Automobile Club A/S/O Zenaida Reynado	4-28-2023
70.	Sylvia Alvarez, Interinsurance Exchange of the Automobile Club	Vehicle Damages	Interinsurance Subrogee of Vanessa Ramirez/ Oscar Sanchez	8-14-2023
71.	Louis Krass	Vehicle Damages	Jose Recinos	4-16-2023
72.	Juan Chavez / Huysean Leng / Jose Larez Sr Felix	Vehicle Damages	Juan Chavez / Huysean Leng / Jose Larez Sr Felix	Not listed
73.	Karen E. Starler Hignite	Vehicle Damages	Karen E. Starler Hignite	9-11-2023
74.	Robert Haralambopoulos	Vehicle Damages	Kendrick Jackson	5-18-2023
75.	Richard Spencer	Vehicle Damages	Maxwell Harris	6-8-2023

76.	Norma Hernandez	Vehicle Damages	Norma Hernandez	6-1-2023
77.	Samuel Crespo	Vehicle Damages	Samuel Crespo	9-19-2023
78.	Tomekia Lomax	Vehicle Damages	Tomekia Lomax	9-14-2023
79.	William Mort	Vehicle Damages	William Mort	8-29-2023
80.	Yanira Villareal	Vehicle Damages	Yanira Villareal	9-20-2023